

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: July 13, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Larson v. Murphy 2025-01485707 Demurrer to Answer	Plaintiff Shawna Larson's Demurrer to Defendant Sean Murphy's Answer to the Second Amended Complaint is OVERRULED, in part, as to the 17th affirmative defense, and SUSTAINED with 20 days leave to amend as to the remaining affirmative defenses. Plaintiff demurs to each affirmative defense on the grounds that they fail to set forth facts sufficient to constitute a defense and are uncertain. (See Code Civ. Proc., §§ 431.20, subds. (a), (b).) Legal Standard "A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense. (b) The answer is uncertain. As used in this subdivision, 'uncertain' includes ambiguous and unintelligible. (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral." (Code Civ. Proc. § 430.20.) A demurrer to an answer raises an inquiry into whether the answer states a defense to the
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	plaintiff's cause of action. (<i>Timberidge Enterprises, Inc. v. City of Santa Rosa</i> (1978) 86 Cal.App.3d 873, 880.) "The answer to a complaint shall contain: [¶] (1) The general or specific denial of the material allegations of the complaint controverted by the defendant. [¶] (2) A statement of any new matter constituting a defense." (Code Civ. Proc. § 431.30(b).) "The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff. Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as 'new matter.'" (<i>State Farm Mut. Auto. Ins. Co. v. Superior Court</i> (1991) 228 Cal.App.3d 721, 725 [citations omitted]; see <i>Walsh v. West Valley Mission Comm. College Dist.</i> (1998) 66 Cal.App.4th 1532, 1546.) "It has long been held that 'if the onus of proof is thrown upon the defendant, the matter to be proved by him is new matter.'" (<i>Harris v. City of Santa Monica</i> (2013) 56 Cal. 4th 203, 239 [citations omitted].) Such "new matter" is also known as "an affirmative defense." (<i>Advantec Group, Inc. v. Edwin's Plumbing Co., Inc.</i> (2007) 153 Cal.App.4th 621, 627.) California applies a liberal notice pleading standard, under which a party need only plead ultimate facts showing the essential elements of a claim or defense – not evidentiary facts or detailed factual narratives. (<i>Doe v. City of Los Angeles</i> (2007) 42 Cal.4th 531, 550; <i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 382 ["properly drafted pleadings aver the ultimate facts which constitute the cause of action or defense thereto."].) Even under this liberal pleading standard, affirmative defenses must not be pled as "terse legal conclusions," but "rather . . . as facts 'averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.'" (<i>FPI Development, Inc., supra</i>, 231 Cal.App.3d. at p. 384.) Merits Defendant's Answer asserts the following 17 affirmative defenses: (1) Failure to State a Cause of Action; (2) Estoppel; (3) Failure to Mitigate; (4) Statute of Limitations; (5) Laches; (6) Lack of Damages; (7) Plaintiff's Negligence; (8) Third Party Acts; (9) No Outrageous Conduct; (10) Apportionment of Liability; (11) Conduct of Other Parties; (12) Attorney's Fees Unavailable; (13) Comparative Fault; (14) Punitive Damages Unavailable; (15) No Intent to Injure; (16) Causation; and (17) Additional Affirmative Defenses. Plaintiff asserts no specific argument to support her contention that Defendant's affirmative defenses are
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		uncertain. Therefore, the special demurrer on the grounds of uncertainty is OVERRULED. The 2nd – 5th, 7th, 8th and 10th – 14th affirmative defenses concern new matter but fail to state sufficient facts to constitute a defense. Instead, they only state legal principles and conclusions. For example, the 3rd affirmative defense for Failure to Mitigate merely alleges: “Plaintiff has failed to mitigate its damages, if any, and to the extent of such failure to mitigate, any damages awarded to Plaintiff should be reduced accordingly.” (Answer, p. 2:12-13.) The Answer fails to state facts describing what Plaintiff failed to do, when, or how damages would be reduced. Similarly, the 4th affirmative defense for Statute of Limitations alleges: “The Complaint and each of its causes of action are barred by the provisions of one or more of the Applicable statute of limitations provisions contained within the California Code of Civil Procedure.” (Answer, p. 2:16-18.) However, the Answer fails to identify any applicable statute of limitations or dates showing time bar, which are the two ways a statute of limitations defense may be properly plead. (See Code Civ. Proc., § 458; <i>Hall v. Chamberlain</i> (1948) 31 Cal.2d 673, 680.) The remaining affirmative defenses fail to state sufficient facts for the reasons stated in Plaintiff’s demurrer. The 1st, 6th, 9th, 15th and 16th affirmative defenses are not affirmative defenses. The 1st affirmative defense is a ground for demurrer under Code of Civil Procedure, section 430.10, subdivision (e), not an affirmative defense. Defendant raised this ground in its pending demurrer to the Second Amended Complaint. The 6th, 9th, 15th and 16th affirmative defenses merely deny Plaintiff’s factual allegations. Thus, the demurrer to the 1st – 16th affirmative defenses on the grounds that they fail to state facts to constitute a defense is SUSTAINED with 20 days leave to amend. Plaintiff asserts no specific argument regarding the 17th affirmative defense for Additional Affirmative Defenses. Therefore, the demurrer to the 17th affirmative defense is OVERRULED. Moving party to give notice.
2	Ghadiri v. Adam 2025-01481407 Demurrer to Amended Complaint	Defendants Brent Alexander Adam and Chandel Leigh Adam’s Demurrer to the First Amended Complaint is SUSTAINED with leave to amend. “To determine the statute of limitations which applies to a cause of action it is necessary to identify the nature of the